

CV-26-001921 JOHNSON, GUY PATRICK vs COUNTY OF STANISLAUS – a) Defendant’s Motion to Strike Portions of Plaintiff’s First Amended Complaint - CONTINUED, on the Court’s own motion; b) Defendant California Forensic Medical Group, Inc.’s Demurrer to Plaintiff’s First Amended Complaint – CONTINUED, on the Court’s own motion.

County: stanislaus

Division: Civil Law and Motion

Department: 24

Hearing date: 2012-04-02

Motion: a) CONTINUED, on the Court’s own motion. The Court notes that Defendants failed to engage in the required meet and confer prior to bringing the Motion to Strike. Regardless of Defendants’ prior meet and confer, meet and confer was required after the filing of Plaintiffs’ First Amended Complaint. “If an amended pleading is filed, the responding party shall meet and confer again with the party who filed the amended pleading before filing a motion to strike the amended pleading.” Code Civ. Proc., § 435.5(a). Therefore, the parties are ordered to engage in meet and confer “in person, by telephone, or by video conference” to address and or narrow down the issues raised by the present motion to strike. Code Civ. Proc., § 435.5(a). The hearing on the motion is accordingly continued to November 5, 2026, at 8:30 am in Department 24 of this Court for that purpose. No later than five court days ahead of the continued hearing the parties shall file a Joint Statement, or individual statements if a joint statement cannot be filed, advising the Court of the status of the Motion to Strike, and of outstanding issues, if any. b) CONTINUED, on the Court’s own motion. The parties are ordered to engage in meet and confer “in person, by telephone, or by video conference” to address and or narrow down the issues raised by the Demurrer. The hearing on the motion is accordingly continued to November 5, 2026, at 8:30 am in Department 24 of this Court for that purpose. No later than five court days ahead of the continued hearing the parties shall file a Joint Statement, or individual statements if a joint statement cannot be filed, advising the Court of the status of the Demurrer, and of outstanding issues, if any. The following is the tentative ruling for a case calendared before Commissioner Richard Moths in Department 19 located at the Turlock Division at 300 Starr Avenue, Turlock, CA:

Source URL: <https://www.stanislaus.courts.ca.gov/online-services/tentative-rulings/civil-tentative-rulings>

Source SHA-256: fb448dcd93ce8de21248dd71f3a8d145980a8629d7cb5f30b138d4dc1be1154d

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a) CONTINUED, on the Court’s own motion.

The Court notes that Defendants failed to engage in the required meet and confer prior to bringing the Motion to Strike. Regardless of Defendants’ prior meet and confer, meet and confer was required after the filing of Plaintiffs’ First Amended Complaint. “If an amended pleading is filed, the responding party shall meet and confer again with the party who filed the amended pleading before filing a motion to strike the amended pleading.” Code Civ. Proc., § 435.5(a).

Therefore, the parties are ordered to engage in meet and confer “in person, by telephone, or by video conference” to address and or narrow down the issues raised by the present motion to strike. Code Civ. Proc., § 435.5(a).

The hearing on the motion is accordingly continued to November 5, 2026, at 8:30 am in Department 24 of this Court for that purpose.

No later than five court days ahead of the continued hearing the parties shall file a Joint Statement, or individual statements if a joint statement cannot be filed, advising the Court of the status of the Motion to Strike, and of outstanding issues, if any.

b) CONTINUED, on the Court's own motion.

The parties are ordered to engage in meet and confer "in person, by telephone, or by video conference" to address and or narrow down the issues raised by the Demurrer.

The hearing on the motion is accordingly continued to November 5, 2026, at 8:30 am in Department 24 of this Court for that purpose.

No later than five court days ahead of the continued hearing the parties shall file a Joint Statement, or individual statements if a joint statement cannot be filed, advising the Court of the status of the Demurrer, and of outstanding issues, if any.

The following is the tentative ruling for a case calendared before Commissioner Richard Moths in Department 19 located at the Turlock Division at 300 Starr Avenue, Turlock, CA: